

Attachment A

From: Ryan McBride [REDACTED]@UtahCounty.gov>
Sent: Wednesday, January 21, 2026 1:05 PM
To: Chad Grunander [REDACTED]@UtahCounty.gov>
Subject: FW: Legal Guidance Re: Media Statements

From: Christopher Ballard [REDACTED]@utahcounty.gov>
Sent: Friday, September 12, 2025 7:54 AM
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Cc: Jeff Gray [REDACTED]@utahcounty.gov>; Ryan McBride [REDACTED]@UtahCounty.gov>; Chad Grunander [REDACTED]@UtahCounty.gov>
Subject: Legal Guidance Re: Media Statements

Chiefs and others,

Please carefully review the attached letter regarding ethical rules that bind prosecutors and, by extension, law enforcement agencies in making statements to the media.

Please ensure that your PIO's and other officers strictly adhere to this guidance, especially in making statements regarding the Charlie Kirk shooting at UVU.

Christopher D. Ballard



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Date: 9/12/2025

Re: Media statements re Tyler Robinson/Charlie Kirk

To all personnel likely to make media statements regarding the Charlie Kirk case:

The Utah County Attorney's Office has an ethical obligation to "exercise reasonable care to prevent investigators, law enforcement personnel," and others from making public comments which "have a substantial likelihood of materially prejudicing" the trial process in criminal cases. I write to satisfy that obligation and provide guidance to you regarding statements to the media.

Rule 3.6 of the Rules of Professional Conduct for attorneys outlines the parameters of permissible statements and can be found [here](#). While these rules generally apply to attorneys, prosecutors have a special duty to ensure law enforcement and other officials adhere to these rules in criminal cases as well. See [Rule 3.8\(e\)](#). The point of the rules is ensure the defendant is afforded a fair trial by an impartial jury.

Key limitations to keep in mind include the following:

- Statements should be limited to information included in the public record – meaning the probable cause statement used in booking and legal papers filed in the case, like the charging document.
- Statements can include that the investigation is ongoing;
- Statements can include the next step of the criminal court process;
- Statements can include the date and place of the arrest; and
- Statements can include the names of officers and agencies involved in the investigation.

Statements should avoid the following:

- Statements about the defendant's character;
- Statements about the defendant's criminal history;
- Opinions about the defendant's guilt or proper punishment; and
- Any other statements which could risk violating the defendant's right to a fair trial.

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Prejudicial statements made to the media and public have created significant legal issues in high profile cases – which can cause the case to be moved to another county, sanctions on prosecutors, and even dismissal. We want to avoid those issues in all cases. Accordingly, we invite you to contact our office with any questions about this topic, especially when your agency receives press inquiries on high-profile cases.

Sincerely,

/s/ Ryan McBride

General Crimes Division Chief